



Delaware County Commissioners Meeting April 19th 2021

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=r8I54Sp_DWQ
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Delaware County Commissioners Meeting Report

Meeting Date: April 19, 2021

Report Publication: Civic Analysis Division

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the regular meeting of the Delaware County Commissioners to order at **00:02:01** on April 19, 2021.
- **Attendance:**
 - **Members Present:** Mr. Henry, Ms. Reagan, Mr. King, Mr. Brook
 - **Members Absent:** None noted.
 - **Presiding Officer:** Mr. Henry (implied by call to order/roll call facilitation).

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance.
- **Approval of Minutes:** The minutes of the April 5, 2021 commissioner's meeting were approved (Roll call vote: Ms. Reagan - yes, Mr. Henry - yes, Mr. King - yes).

4. Substantive Business & Board Action

- **00:01:43 Emergency Declaration 2020-09**
 - **Sponsor / Presenter:** Mr. Brook (County Attorney)
 - **Deliberation Summary:** Mr. Brook reported that Delaware County still has active COVID-19 infections, though deaths have decreased and the county dropped to the state's "blue" category with a 4% positivity rate. Because the state emergency mandate remains active through the end of the month, the declaration was extended to the next meeting on May 3.
 - **Action & Vote Disposition:** Approved (Roll call vote: Mr. Henry - yes, Ms. Reagan - no, Mr. King - yes).
- **00:02:49 Delaware County Community Corrections Lease Agreement**
 - **Sponsor / Presenter:** Jane Miranda, Community Corrections Director
 - **Deliberation Summary:** Director Miranda presented a lease drafted by Mr. Brook for a new space located at 3100 South Tipton. She noted the Community Corrections board already approved the agreement.
 - **Action & Vote Disposition:** Approved unanimously by roll call vote (Ms. Reagan - yes, Mr. Henry - yes, Mr. King - yes).
- **00:03:37 Interlocal Agreement with Yorktown for Paving Project**
 - **Sponsor / Presenter:** Angie (County Attorney's office)
 - **Deliberation Summary:** The county plans to pave River Valley Road. An 800-foot section of the road is located within the town of Yorktown. Yorktown agreed to pay for the materials so the entire section can be completed cohesively.
 - **Action & Vote Disposition:** Approved unanimously by roll call vote (Ms. Reagan - yes, Mr. Henry - yes, Mr. King - yes).
- **00:04:23 Ordinance No. 2021-008: American Rescue Plan Fund Creation (Second Reading)**
 - **Sponsor / Presenter:** Auditor's Office / Board Staff
 - **Deliberation Summary:** Establishes a new fund to receive federal funding from the American Rescue Plan adopted by Congress in 2021. Funds are expected to be directly deposited by May 11.
 - **Action & Vote Disposition:** Adopted unanimously by roll call vote (Mr. Henry - yes, Ms. Reagan - yes, Mr. King - yes).
- **00:05:14 Ordinance Nos. 2021-010 & 2021-011: Comprehensive Zoning Ordinance Amendment (West Fusion Road)**
 - **Sponsor / Presenter:** Marta Moody, Executive Director, Muncie Delaware Metropolitan Plan Commission
 - **Deliberation Summary:** The commission consolidated consideration of two cases involving approximately 138 acres located on the west side of Cowen Road (extending from Fusion Road south to State Road 67). The request changes zoning from "F" (Farming) to "IL" (Limited Industrial). The Plan Commission forwarded a

favorable recommendation by a 5-to-4 vote earlier in the month. Economic development representatives argued the site is shovel-ready, features high-tech infrastructure, and is vital for job creation. Opposing residents raised concerns regarding wildlife, proximity to neighborhoods, property values, water table disruptions, and traffic.

- **Item-Specific Public Input:**
 - **00:06:54 Ms. Lawson Mutter:** Voiced opposition, citing negative impacts on neighborhood character, property values, noise, and traffic, while suggesting alternative industrial locations like the existing shell building or the former Warner Gear site.
 - **00:09:26 Tracy Lutton** (Muncie Delaware County Economic Development Alliance): Spoke in favor, emphasizing job creation, capital investment, strong utility infrastructure, and strict limitations of “Limited Industrial” zoning.
 - **00:12:17 Mr. Joe Davis:** Spoke against, highlighting nearby wildlife, potential negative impacts on the local water table, and historical water drops experienced during previous ditch construction.
 - **00:15:35 Mike Dunham:** Spoke against, noting available industrial land elsewhere in the county and potential health/environmental risks associated with light industrial/food processing facilities.
- **Action & Vote Disposition:** Adopted unanimously by roll call vote (Ms. Reagan - yes, Mr. Henry - yes, Mr. King - yes).
- **00:18:36 Ordinance No. 2021-013: Comprehensive Zoning Ordinance Amendment Regarding Solar Energy (Second Reading)**
 - **Sponsor / Presenter:** Marta Moody, Executive Director, Plan Commission
 - **Deliberation Summary:** Proposes text amendments establishing development standards for solar farms in unincorporated Delaware County (recommended 9-0 by the Plan Commission). Revisions discussed included reducing setbacks from 100 feet to 50 feet, screening requirements, drainage tile protection, economic development agreements, pesticide restrictions, landscape architectural plans, and 10% evenly distributed wildlife-friendly fencing.
 - **Item-Specific Public Input:**
 - **00:08:09 Julie Borgman** (Red Tail Land Conservancy): Commended the draft ordinance and spoke in support of utilizing native grasses and wildflowers underneath solar panels to restore soil health and reduce maintenance costs, while discouraging forest removal.
 - **00:14:14** (*Note: Timestamp context*) **Nikki Jeffers** (EDP Renewables): Expressed support, praised proactive county planning, and sought clarification on native ground cover language vs. maintenance provisions.
 - **Action & Vote Disposition:** **Tabled** unanimously to allow staff to compile a clean copy incorporating amendments 1 through 5 and clearing up ground cover wording (Roll call vote: Mr. Henry - yes, Ms. Reagan - yes, Mr. King - yes).

- **00:37:46 Ordinance No. 2021-012: New Fund for EMS Grant-Funded Overtime (First Reading & Adoption)**
 - **Sponsor / Presenter:** Delaware County Emergency Medical Services Department
 - **Deliberation Summary:** Creates a new fund for grant-funded overtime. Staff requested rule suspension to allow immediate adoption due to impending fund disbursement.
 - **Action & Vote Disposition:** Introduced, rules suspended, and adopted unanimously by successive roll call votes (Ms. Reagan - yes, Mr. Henry - yes, Mr. King - yes).
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5. Open Public Comment / Citizen Forum

- No general citizen forum or open public comment session independent of specific agenda public hearings took place outside of scheduled agenda items.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **00:38:59 Weights and Measures (Jeff Brandon):** Received unanimous approval to donate two 5-gallon provers and four 50-pound test weights to the state for certification and potential distribution to smaller, underfunded counties.
 - **00:40:11 Delaware County 9-1-1 (Paul Singleton):** Reported budget savings from telephone system upgrades and fiber/microwave transitions. Requested a \$3,692.31 expenditure (using existing budget) for Motorola audio/analog recording conversion. Also reported ongoing HVAC failures (condenser leaks) at the 9-1-1 facility, presenting a replacement quote of \$22,700. Commissioners requested additional quotes and discussion at upcoming 9-1-1 board meetings.
 - **Claims Approval:** Payment of claims totaling **\$2,845,774.54** was approved unanimously by roll call vote.
 - **Personal Remarks:** Mr. Henry expressed gratitude for community messages, flowers, and support received during the prior week.
 - **Adjournment:** Official motion to recess/adjourn passed unanimously by roll call vote (**00:45:11**).
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